IN THE NATIONAL COMPANY LAW TRIBUNAL
DIVISION BENCH (COURT– I) CHENNAI

ATTENDANCE CUM ORDER SHEET OF THE HEARING
HELD ON **27.06.2025** THROUGH VIDEO CONFERENCING

PRESENT: HON'BLE SHRI. SANJIV JAIN, MEMBER (JUDICIAL)
HON'BLE SHRI. VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

APPLICATION NUMBER	**:** CA(CAA)/46(CHE)/2025
PETITION NUMBER	**:**
NAME OF THE PETITIONER(S)	**:** Tagros Chemicals India Pvt Ltd
NAME OF THE RESPONDENTS	**:**
UNDER SECTION	**:** Sec 230 to 232 of CA, 2013

ORDER

Present: Ld. Counsel Shri. Ashwin Raman for the Applicant.

Vide separate order pronounced in Open Court, the application is disposed of. Meetings are ordered.

Sd/-
(VENKATARAMAN SUBRAMANIAM)
MEMBER (TECHNICAL)

Sd/-
(SANJIV JAIN)
MEMBER (JUDICIAL)

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Date: 27.06.2025

IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - I, CHENNAI

CA(CAA)/46(CHE)/2025

Under Sections 230 to 232 of the Companies Act, 2013

In the matter of Scheme of Arrangement (Demerger) between

TAGROS CHEMICALS INDIA PRIVATE LIMITED
having its registered office at Tagros House,
4th Floor, No.4 (Old No. 10),
Club House Road, Anna Salai,
Chennai, Tamil Nadu – 600002.

… Applicant Company 1/Transferor Company 1 /Demerged Company

TIL HEALTHCARE PRIVATE LIMITED,
having its registered office at Tagros House,
3rd Floor, No.4 (Old No. 10),
Club House Road, Anna Salai,
Chennai, Tamil Nadu – 600002.

…. Applicant Company 2 / Transferor Company 2 / Demerged Company

SPAR REAL ESTATE PRIVATE LIMITED
having its registered office at,
1st Floor, Tagros House,
New No.4 (Old No.10),
Club House Road, Anna Salai,
Chennai, Tamil Nadu – 600002.

…. Applicant Company 3 / Transferee Company / Resulting Company

and their respective Shareholders and Creditors.

Order Pronounced on ***27th June, 2025***

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SANJIV JAIN, MEMBER (JUDICIAL)
VENKATARAMAN SUBRAMANIAM, MEMBER (TECHNICAL)

For Applicant(s): Mr. Pawan Jhabakh, Advocate

ORDER

1. This is an Application Viz., CA(CAA)/46(CHE)/2025 filed by the **Tagros Chemicals India Private Limited** (for brevity "Applicant Company 1 /Transferor Company 1/Demerged Company"), **TIL Healthcare Private Limited** (for brevity "Applicant Company 2/Transferor Company 2/Demerged Company"), **Spar Real Estate Private Limited** (for brevity "Applicant Company 3 / Transferee Company/ Resulting Company") and its Shareholders under section 230-232 of Companies Act, 2013 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Demerger (hereinafter referred to as the "SCHEME") proposed by the Applicant Companies herein with its Shareholders. The Scheme is appended as "**Annexure 1**" at **Page No.35-92** to the typeset of the Application.
2. The Applicant Companies in this Company Application have sought for the following reliefs;

	EQUITY SHAREHOLDERS	SECURED CREDITORS	UNSECURED CREDITORS
APPLICANT COMPANY 1/TRANSFEROR COMPANY (1)/ DEMERGED COMPANY (1)	To Dispense with the meeting	To Dispense with the meeting	To Conduct meeting
APPLICANT COMPANY 2/TRANSFEROR COMPANY (2)/ DEMERGED COMPANY (2)	To Dispense with the meeting	To Dispense with the meeting	To Conduct meeting
APPLICANT COMPANY 3/TRANSFEREE COMPANY/ RESULTING COMPANY	To Dispense with the meeting	NIL	To Dispense with the meeting

3. The **RATIONALE OF THE SCHEME** is as under:

a) Segregation of the real estate & leasing business from the Demerged Companies will allow concentrated focus of the management of Demerged Companies in their respective agrochemical and pharmaceutical businesses.

b) Realignment and consolidation of the real estate & leasing business undertaking in the Resulting Company in an efficient manner and strengthening capabilities to effectively meet future challenges in the competitive business environment.

c) Each business would be able to address independent business opportunities, pursue efficient capital allocation and attract different sets of investors, strategic partners, lenders and other stakeholders, and will enable shareholders / investors to separately hold investments which best suit their investment strategies and risk profiles.

d) The demerger would enable greater / enhanced focus by the management of the Resulting Company in the real estate & leasing business.

e) Eliminate any conflict of interest in the growth strategies of the different businesses and unlocking the economic value of all the business / Companies involved in the Scheme.

f) Moreover, the Scheme is expected to increase the long-term value for the shareholders of all the Companies and other stakeholders.

4. It is started that the (i) Applicant Company 1/Demerged/Transferor Company 1 viz., **Tagros Chemicals India Private Limited** is a Private

Limited Company incorporated under the provisions of Companies Act, 1956 on 30.12.1992 with CIN: U24294TN1992PTC024115. The Authorised/Issued/Subscribed and Paid up Share Capital of the Applicant Company 1/Demerged Company 1 as on 31.03.2025 are as follows: -

Particulars	**Rupees**
Authorised share capital	
2,92,30,000 Equity Shares of Rs.10/- each	29,23,00,000/-
1,00,000 Cumulative Redeemable Preference shares of Rs. 100/- each	1,00,00,000/-
Total	**30,23,00,000/-**
Issued, Subscribed and Paid up share capital	
3,36,400 equity shares of Rs.10/- each fully paid up	33,64,000/-
Total	**33,64,000/-**

(ii) The Applicant Company 2/Demerged/Transferor Company 2 viz., TIL Healthcare Private Limited is a Private Limited Company incorporated under the provisions of Companies Act, 1956 on 25.01.1991 with CIN: U24231TN1991PTC020206. The Authorised/Issued/Subscribed and Paid up share capital of the Applicant Company 2/Demerged Company 2 as on 31.03.2025 are as follows: -

Particulars	**Rupees**
Authorised share capital	
50,00,000 equity shares of Rs.10/- each	5,00,00,000/-

Issued, Subscribed and Paid up share capital	
23,09,452 equity shares of Rs.10/- each fully paid	2,30,94,520 /-
Total	2,30,94,520/-

(iii) The Applicant Company 3/Resulting Company/Transferee Company viz., Spar Real Estate Private Limited is a Private Limited Company incorporated under the provisions of Companies Act, 2013 on 07.03.2014 with CIN: U68200TN2014PTC095336. The Authorised/Issued/Subscribed and Paid up share capital of the Applicant Company 3/Resulting Company as on 31.03.2025 are as follows: -

Particulars	**Rupees**
Authorised share capital	
10,000 Equity Shares of Rs.10/- each	1,00,000/-
Total	1,00,000/-
Issued, Subscribed and Paid up share capital	
10,000 Equity Shares of Rs.10/- each fully paid up	1,00,000/-
Total	1,00,000/-

5. It is stated that this Application is being filed in relation to a Scheme of Arrangement between Tagros Chemicals India Private Limited (Applicant Company 1/ Transferor Company 1/Demerged Company 1), TIL Healthcare Private Limited (Applicant Company 2/ Transferor Company 2/Demerged Company 2) and Spar Real Estate Private Limited (Applicant Company 3/

Transferee Company/Resulting Company) and their respective shareholders and creditors.

6. Affidavits in support of the above application sworn in, on behalf of the Applicant Company 1/Demerged Company 1 has been signed by Mrs. S. Kavitha in the capacity of Authorized Signatory, on behalf of the Applicant Company 2/Demerged Company 2 has been signed by Mr. R. Vijayaragavan in the capacity of Authorized Signatory and on behalf of the Applicant Company 3/Resulting Company has been signed by Mr. Venkatachalam Kailasam in the capacity of Authorized Signatory. The same are placed along with the Application at **Pg.20-34**. It is also represented that the registered office of the Applicant Companies is situated in the State of Tamil Nadu and therefore it is within the jurisdiction of this Tribunal.

7. We have perused the application and the connected documents/papers filed therewith including the Scheme contemplated by the Applicant Companies.

8. The Applicant Companies have filed their Memorandum and Articles of Association *inter alia* delineating their object clauses as **Annexure 2, 4, 6.** The Applicant Companies have submitted their last available Audited Annual Accounts for the year ended 31.03.2024 and as well as the unaudited Annual Accounts for the year ended on 31.03.2025 as **Annexure 3, 5, 7.**

9. The Board of Directors of the Applicant Companies vide meeting held on **04.04.2025, 15.04.2025** and on **04.04.2025** respectively have unanimously approved the proposed Scheme as contemplated above (The copies of

resolutions passed thereon have been placed on record by the applicant companies at **Pg.448-466** as **Annexure 8**).

10. As per the Scheme, the Appointed date is specified as,

"Appointed Date" shall mean the same date as the Effective Date, or such other date as may be fixed or approved by the National Company Law Tribunal or such other competent authority / Appropriate Authority; and the *"Effective Date" in relation to the Scheme, means the last of the dates on which certified copies of the order of the NCLT sanctioning the Scheme are filed by the Companies with the jurisdictional Registrar of Companies. References in this Scheme to the date of "coming into effect of this Scheme" or "upon the Scheme becoming effective" shall mean the Effective Date;*

11. The Statutory Auditors of the Applicant Companies have examined the Scheme in terms of provisions of Sec. 232 of Companies Act, 2013 and the Rules made thereunder and certified that the Accounting Standards are in compliance with Section 133 of the Companies Act, 2013. The Certificates of the Statutory Auditors in this regard are placed at **"Annexure 25"** of the Applicant Companies typed set of Documents filed along with the application.

12. Taking into consideration the application filed by the Applicant Companies and the documents filed therewith as well as the position of law, this Tribunal issues the following directions: -

A. TAGROS CHEMICALS INDIA PRIVATE LIMITED

(DEMERGED COMPANY 1/ APPLICANT COMPANY 1)

I. EQUITY SHAREHOLDERS

(i) There are **6 (Six)** Equity Shareholders, whose consent affidavits are placed at **Pgs.484-519**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.482- 483** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company 1 that there are **6 (Six)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **Three (3)** Secured Creditors, whose consent affidavits are placed at **Pgs.598-634** of the Application **and Pgs.1-5** of the Additional typed set. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditors is placed as **Annexure 16** at **Pg.595-597** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company 1 that there are **Three (3)** Secured Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

III. UNSECURED CREDITORS

(i) There are **2,887 (Two Thousand Eight Hundred and Eighty-Seven)** Unsecured Creditors in the Applicant Company 1 as on

31.03.2025. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed as **Annexure 18** at **Pg.635-696.** The Applicant Company has sought for convening, holding and conducting the meeting.

(ii) Meeting of the Unsecured Creditors of the Applicant Company-1 is directed to be held on **09.08.2025** at **10.00 AM** at the registered office of the Applicant Company-1 or through video conferencing or at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

B. TIL HEALTHCARE PRIVATE LIMITED (DEMERGED COMPANY 2/ APPLICANT COMPANY 2)

I. EQUITY SHAREHOLDERS

(i) There are **6 (Six)** Equity Shareholders, whose consent affidavits are placed at **Pgs.523-562**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.520-522** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company 2 that there are **6 (Six)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **Two (2)** Secured Creditors, whose consent affidavits are placed at **Pgs.700-732** of the Application. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditors is

placed at **Pg.697-699** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company 2 that there are **Two (2)** Secured Creditors in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

III. UNSECURED CREDITORS

(i) There are **663 (Six Hundred and Sixty-Three)** Unsecured Creditors in the Applicant Company 1 as on 31.03.2025. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pg.733-747.** The Applicant Company has sought for convening, holding and conducting the meeting.

(ii) Meeting of the Unsecured Creditors of the Applicant Company-2 is directed to be held on **09.08.2025** at **12.00 Noon** at the registered office of the Applicant Company-2 or through video conferencing or at any other suitable place for which prior approval shall be sought from this Tribunal within a period of 7 days from the date of this order and prior to the issue of notices.

C. SPAR REAL ESTATE PRIVATE LIMITED (RESULTING COMPANY / APPLICANT COMPANY 3)

I. EQUITY SHAREHOLDERS

(i) There are **5 (Five)** Equity Shareholders, whose consent affidavits are placed at **Pgs.565-594**. The Certificate issued by the Chartered Accountant certifying the list of Equity Shareholders is placed at **Pg.563-564** of the typed set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company 3 that there are **5 (Five)** Equity Shareholders in the Company whose consents by way of Affidavits have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

II. SECURED CREDITORS

(i) There are **NIL** Secured Creditors in the Applicant Company - 3. The Certificate issued by the Chartered Accountant certifying the list of Secured Creditor is placed at **Pg.748-749** of the typed set filed with the application. Since it is represented by the Applicant Company - 3 that there are **NIL** Secured Creditors, the necessity of convening, holding and conducting the meeting ***does not arise.***

III. UNSECURED CREDITORS

(i) There are **Two (2)** Unsecured Creditor**s** whose consent affidavits are placed at **Pgs.753-765**. The Certificate issued by the Chartered Accountant certifying the list of Unsecured Creditors is placed at **Pgs.750-752** of the type set filed with the application. It has sought dispensation with holding of meeting.

(ii) Since it is represented by the Applicant Company- 3 that there are **Two (2)** Unsecured Creditor in the Company whose consent by way of Affidavit have been obtained and are placed on record, the necessity of convening, holding and conducting the meeting is ***dispensed with.***

13. The quorum for the meeting of the Applicant companies shall be as follows;

a) Applicant Company-1/Demerged Company-1/Transferor Company-1

S.NO	CLASS	QUORUM	DATE & TIME OF MEETING
1.	UNSECURED CREDITORS	100	09/08/2025 at 10.00 AM

b) Applicant Company-2/Demerged Company-2/Transferor Company-2

S.NO	CLASS	QUORUM	DATE & TIME OF MEETING
1.	UNSECURED CREDITORS	50	09/08/2025 at 12.00 Noon

i) The Chairperson appointed for the above said meetings shall be **Mr. Sriram Ananth V *(Mob: 8056279887).*** The Fee of the Chairperson for the aforesaid meeting shall be ***Rs. 1,00,000 (One Lakh Rupees)*** in addition to meeting his incidental expenses if any. The Chairperson(s) will file the reports of the meeting within a week from the date of holding of the above said meetings.

ii) **Mrs. Vinita Varshini (*Mob: 9791983076),*** is appointed as a Scrutinizer and he shall be entitled to a fee of **Rs. *50,000 (Fifty Thousand Rupees)*** for services in addition to meeting incidental expenses if any.

iii) In case the quorum as noted above, for the above meetings of the Applicant Companies is not present at the meeting, then the meeting shall be adjourned by half an hour, and thereafter the person(s) present and voting shall be deemed to constitute the quorum. For the purpose of computing the quorum the valid proxies shall also be considered, if the proxy in the prescribed form, duly signed by the person entitled to attend and vote at the meeting, is filed with the

registered office of the applicant companies at least 48 hours before the meeting. The Chairperson appointed herein along with Scrutinizer shall ensure that the proxy registers are properly maintained. However, every endeavour should be made by the applicant companies to attain at least the quorum fixed, if not more in relation to approval of the scheme.

iv) The meetings shall be conducted as per applicable procedure prescribed under the MCA Circular MCA General Circular Nos. (i) 20/2020 dated 5th May, 2020 (AGM Circular), (ii) 14/2020, dated 08.04.2020 (EGM Circular-I) and (iii) 17/2020 dated 13.04.2020 (EGM Circular-II);

v) That individual notices of the above said meetings shall be sent by the Applicant Companies through registered post or speed post or through courier or e-mail, 30 days in advance before the scheduled date of the meeting, indicating the day, date, the place and the time as aforesaid, together with a copy of Scheme, copy of explanatory statement, required to be sent under the Companies Act, 2013 and the prescribed form of proxy shall also be sent along and in addition to the above any other documents as may be prescribed under the Act or rules may also be duly sent with the notice.

vi) That the Applicant Company shall publish advertisement with a gap of atleast 30 clear days before the aforesaid meetings, indicating the day, date and the place and time as aforesaid, to be published in the English Daily ***"Business Standard (All India Edition)*** & ***Makkal Kural (Tamil Nadu Edition)*** in Vernacular stating the copies of Scheme, the

Explanatory Statement required to be furnished pursuant to Section 230 of the Companies Act, 2013 and the form of proxy shall be provided free of charge at the registered office of the respective Applicant Companies.

vii) The Chairperson shall as aforestated be responsible to report the result of the meeting within a period of 3 days of the conclusion of the meeting with details of voting on the proposed scheme.

viii) The company shall individually send notice to concerned Regional Director, MCA, Registrar of Companies, Official Liquidator and the Income Tax Authorities, SEBI, NSE, BSE as well as other Sectoral regulators who may have significant bearing on the operation of the applicant companies or the Scheme *per se* along with copy of required documents and disclosures required under the provisions of Companies Act, 2013 read with Companies (Compromises, Arrangements, Amalgamations) Rules, 2016.

ix) The Applicant Company shall further furnish a copy of the Scheme free of charge within 1 day of any requisition for the Scheme made by every creditor or member of the applicant companies entitled to attend the meetings as aforesaid.

x) The Authorized Representative of the Applicant Company shall furnish an affidavit of service of notice of meetings and publication of advertisement and compliance of all directions contained herein at least a week before the proposed meetings.

xi) All the aforesaid directions are to be complied with strictly in accordance with the applicable law including forms and formats contained in the Companies (Compromises, Arrangements, Amalgamations) Rules, 2016 as well as the provisions of the Companies Act, 2013 by the Applicants.

14. This Application stands **allowed** on the aforesaid terms.

-Sd-	**-Sd-**
VENKATARAMAN SUBRAMANIAN	**SANJIV JAIN**
MEMBER (TECHNICAL)	MEMBER (JUDICIAL)